

26PDUD01335 26PDUD01335

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-18

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Case Number: 26PDUD01335 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 5

Date: September 18, 2026

Case No: 26PDUD01335 Trial Date: Not yet set

Case Name: HUSPRF Reit LLC v. Schaumkell, et al.

DEMURRER

[CCP § 430.10 subds. (e) and (f)]

Moving Party: Defendants, Eva Schaumkell and Vijay Venkatesh

Responding Party: Plaintiff, HUSPRF 290 North Hudson Ave LP

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Unlawful Detainer

SUMMARY OF FACTS:

HUSPRF 290 North Hudson Ave LP ("Plaintiff") is the owner of real property located at 290 N. Hudson Avenue #412W in Pasadena, CA 91101. Eva Schaumkell and Vijay Venkatesh (collectively, "Defendants") are tenants in the property pursuant to a January 1, 2023 lease agreement. Plaintiff served Defendants with a 3-day notice to pay rent or quit on April 13, 2026. The FAC alleges that Defendants failed to comply with the requirements of the notice.

ANALYSIS:

The Court notes that on September 8, 2026, Plaintiff filed a Request for Dismissal, without prejudice, as to this entire action of all parties and all causes of action.

Thus, the demurrer is MOOT.

RULING:

Defendants Eva Schaumkell and Vijay Venkatesh's Demurrer is MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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